

Integrity

6.1. Conflicts of interest

If a person's decision making is influenced or potentially influenced or biased by their private interests, personal circumstances, or their involvement with another organisation, they are in a conflict of interest.

The University accepts that situations arise from time to time where, for various reasons, some responsible persons may have a conflict of interest.

Conflicts or potential conflicts of interest must be declared by staff members, University officers, visitors and directors and company secretaries of University controlled entities.

A responsible person must be free from a conflict of interest when dealing with persons or other organisations on behalf of the University.

Staff with supervisory, oversight or decision-making responsibilities in relation to another employee or student with whom they have or have had a personal relationship (including relationships involving financial dependence or support), or an intimate personal relationship must declare that relationship to their manager and develop and implement a conflict of interest management plan. A management plan must consider and where required include permanent alternative teaching, research or working arrangements as necessary.

Examples of conduct to be avoided due to a conflict of interest include:

- conducting business on behalf of the University with an associate
- diverting business of the University away from another supplier, customer or other person to an associate
- being involved in a human resource matter such as recruitment and selection, promotion, disciplinary procedures, staff development, performance review and remuneration in which the responsible person has a conflict of interest
- being involved in a student matter such as admission, supervision, assessment, complaint, review or appeal in which the responsible person has a conflict of interest.

Table of roles and responsibilities (VC delegation)

Role/Decision/Action	Responsibility*	Conditions and limitations
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Declaration of a conflict of interest	All staff, University officers and visitors	Declarations must be made in advance Must follow the process and use forms specified by the University Secretary
Provision of annual declarations of private interests.	Council members Directors, company secretaries, nominee directors and nominee secretaries of the University's controlled entities University senior executives Head of Management Units Other staff as identified by Head of Management Units	Must follow the process and use forms specified by the University Secretary

* (Staff holding, acting in or performing the responsible position or office)

6.2. Directorships

The University classifies directorships into three categories:

- private appointments
- community appointments
- University nominees.

6.2.1. Private and community appointments

With the exception of private appointments to companies formed to deal solely with the private affairs of a staff member such as a family trust company, all private and community appointments must be approved in writing by the next level of management from HMU up.

A private appointment is one held in the staff member's personal capacity rather than in his or her capacity as an employee of the University, and not held at the request of the University.

A community appointment is one held by a staff member because the staff member is a University employee or is recognised in his or her field of endeavour, such as an appointment to a government agency, industry or professional group or a peak or representative body. These appointments are at the invitation of the company or are taken up by the staff member because the role is of interest to the staff member, promotes the staff member's field of endeavour or serves the community. These appointments are not directly part of the staff member's employment or held at the request of the University. It is reasonably expected that in such roles the staff member may use some University resources and to some extent act during University time but the staff member must always comply with this policy, in particular in relation to external consultancies.

The University provides no indemnity in respect of private or community directorships. Such directorships are held at the risk of the director and no recourse may be had to the University for any liability, cost or expense arising from the directorship.

However, the University may agree to reimburse or pay the reasonable out-of-pocket expenses of a staff member in respect of a community directorship, for example travel, accommodation and sustenance expenses in attending meetings and performing functions that the University considers are consistent with the University's objects and interests.

6.2.2. University nominees

A nominee appointment is one held as part of a staff member's employment or otherwise at the request of the University, or held by a staff member or other person in order to fill a University appointment to the board of the company.

Subject to any requirement in a company's constitution (approved by the University) or an agreement between the members of a company (including the University), only the Vice-Chancellor, in consultation with the Chief Financial Officer, may decide to hold or request another staff member to hold the role of a University nominee director or company secretary.

The University will indemnify a nominee director or secretary against liability incurred or suffered as a result of serving as an officer of the company if the nominee is:

- a Council member appointed to represent the University and who is not separately and additionally remunerated for the nominee appointment
- a staff member

and

- the liability is incurred or suffered as a result of serving as an officer of the company
- the activities are associated with discharging the statutory objects and functions of the University and those activities fall within the scope of the approval for the University nominee directorship/company secretary role
- the liability is not an “excluded liability”.

An excluded liability is a liability for which a company must not indemnify a person under the laws of the country in which the company is incorporated. For example, under the Corporations Act 2001, the company must not indemnify a director or office-holder for the following:

- a liability owed to the company or any of its related bodies corporate
- certain pecuniary penalty orders and compensation orders under the Corporations Act
- a liability that is owed to someone (other than the company or any of its related bodies corporate) and did not arise out of conduct in good faith.

6.3. External consultancies

The University encourages engagement with industries and the communities we serve, and seeks to be a trusted source of knowledge and expertise.

All external consulting work must be free from any conflict of interest.

External consulting work undertaken through the University must be on a full cost recovery basis.

Staff members are not permitted to charge for services and support provided to students enrolled at the University.

A private external consultancy may only be undertaken by a staff member if it is not contrary to the interests of the University.

The following principles apply to private external consulting work undertaken by staff:

The time devoted to the private consultancy should not derogate from the staff member's ability to satisfactorily perform normal duties of employment and be available for University work during the accepted hours of work

No University facilities (including power, space, equipment), students or services are to be used

The staff member must carry his or her own professional indemnity insurance fully covering the consultancy

The consultancy must not compete with services otherwise provided by the University or be within an area that would normally be offered by the University on a commercial basis

There must be no suggestion that the University is associated with the private consultancy in any way. For example, University letterhead, trademarks, email or web addresses or other University contact details are not to be used.

Table of roles and responsibilities (VC delegation)

Role/Decision/Action	Responsibility*	Conditions and limitations
Specification of HR requirements, guidelines and systems for external consultancies.	Chief People Officer	Any requirements, guidelines and systems must be published. Must comply and be consistent with legislation and the University's policies.

* (Staff holding, acting in or performing the responsible position or office)

6.4. Gifts and hospitality

Staff members and University officers must not seek or accept for themselves or anyone else any gift or benefit (including hospitality) that:

- goes beyond common courtesies consistent with ethical and accepted business practices
- might otherwise in any way compromise or be seen to compromise or influence them in carrying out their duties, or which might reasonably be seen as an inducement which places a staff member under an obligation.

Gifts and benefits not permitted on the above criteria should be declined or handed over or notified to the University.

Table of roles and responsibilities (VC delegation)

Role/Decision/Action	Responsibility*	Conditions and limitations
Disclosure of gift received	All staff and University officers	In the case of staff members, the receipt of any gift should be disclosed to the staff member's manager In the case of University officers sitting on boards or committees, the receipt of any gift should be disclosed to that board or committee.

* (Staff holding, acting in or performing the responsible position or office)

6.5. Lobbying, inducements and personal relationships

The University expects staff, University officers, visitors and directors and company secretaries of University controlled entities to be guided by the highest ethical standards and to:

- act honestly
- make decisions fairly and without bias, based on the consideration of all relevant information and not influenced by personal or extraneous factors.

The University accepts that situations may arise from time to time where third parties approach the University with requests and offers in an attempt to influence decisions made by University decision makers.

Such lobbying and the offering of any inducements must be declared by staff members, University officers, visitors and directors and company secretaries of University controlled entities.

When dealing with persons or other organisations on behalf of the University, a responsible person must be free from any influence arising or perceived to arise from lobbying and the offering of inducements.

Similarly the University does not condone making payments or giving gifts or benefits (including hospitality) to influence individuals to award opportunities to the University or to make a decision in the University's favour.

Regardless of whether or not practices are common place or acceptable in another country or jurisdiction in which the University has activities, no staff member, University officer or director or secretary of a University controlled entity should ever make or agree to payments, gifts or benefits or carry out any behaviour which may be considered to be bribery, a 'kick-back' or a secret commission.

Staff must ensure that their relationships are appropriate and do not compromise impartiality, professional and ethical standards or trust.

Table of roles and responsibilities (VC delegation)

Role/Decision/Action	Responsibility*	Conditions and limitations
Disclosure of lobbying	All staff and University officers	In the case of a staff member who has been lobbied, the lobbying should be disclosed to the staff member's manager In the case of a University officer sitting on a board or committee who has been lobbied, the lobbying should be disclosed to that board or committee.

* (Staff holding, acting in or performing the responsible position or office)

6.6 Information, confidentiality and privacy

The University protects all personal and confidential information and ensures that its staff understand their privacy obligations.

Staff and University officers are expected to respect and protect confidential information and rights to privacy and to use University information properly.

6.6.1. Confidentiality

Staff must ensure they protect proprietary, technical, commercial and other information that is confidential to the University. These obligations continue even after a staff member has ceased employment with the University.

Information that is not generally available concerning the activities, results or plans of the University or its connected entities must be used for authorised purposes only. Such information should be handled and communicated with care, and must not be

disclosed outside the University without proper authority. It must never be used for personal gain or advancement or for the improper benefit of others.

Staff who serve on confidential panels or committees must ensure that they adhere to confidentiality expectations during the process and in perpetuity after the work of the panel or committee is completed.

Confidentiality provisions should be included in contracts with consultants, contractors and other parties who provide services to the University.

6.6.2. Privacy

The University has established guidelines for the collection, use, storage, security and disclosure of personal information, sensitive information and health records in accordance with its obligations under applicable privacy laws.

Personal information will be collected ethically and lawfully and only where it is necessary and incidental to Swinburne functions or activities.

If personal information is collected on behalf of the University, the person involved must be informed of the purpose for which information is collected. Subject to some limitations, employees and students will, on request, be able to gain access to the information collected about them.

Generally, sensitive and health information will only be collected with the consent of the individual or their authorised representative.

Table of roles and responsibilities (VC delegation)

Role/Decision/Action	Responsibility*	Conditions and limitations
Establishing guidelines for the collection, use, storage, security and disclosure of personal information, sensitive information and health records.	Privacy Officer	The guidelines must be published. Must comply and be consistent with legislation and the University's policies.
Nomination of Privacy Officer	University Secretary	

* (Staff holding, acting in or performing the responsible position or office)

6.6.3. Data and Information Governance

The University has established a Data Governance Framework that provide guidance on data and information governance to:

- Protect the University's data against external and internal threats, ensuring we meet our duty of care
- Enable appropriate leveraging of, access to, and sharing of data; and data-driven decision-making
- Define roles and responsibilities for data governance, management and usage, providing clear accountabilities
- Ensure that the University complies with relevant legislation, regulations and standards, and manages risks effectively
- Establish improved and best practices for effective data governance, management, protection, access/sharing and use as outlined by Swinburne's Data Strategy and Data Governance Strategy.

Data management is to be integrated into staff decision making, with risk assessments to be proportionate to the severity of potential consequences.

All projects, major initiatives and policy development activities should consider whether data protection is a factor and how it will be managed.

Academic research data is handled separately and subject to its own discrete protocols.

6.7. CRAM - complaints, reviews, appeals and misconduct

6.7.1. Complaints, reviews and appeals

The University has a complaints management framework that seeks to:

- embed local area decision making and complaints handling with the capacity for decisions to be escalated and reviewed through a series of checks and balances
- provide fair, transparent and consistent processes for dealing with complaints, feedback, and applications for review and appeal.

The framework and decisions made under it are guided by the principles of:

- fairness – to complainants and applicants, University staff and people against whom a complaint is made
- transparency and access – ensuring that the University's complaints, review and appeals system is known to students, staff and others and is easy to access

responsiveness – ensuring that complaints, reviews and appeals are dealt with quickly, courteously and within established timelines
 consistency – ensuring complaints, reviews, and appeals follow a standard procedure across the University
 privacy and confidentiality
 accountability – ensuring that the University monitors, reviews and assesses information provided through the framework.

A student has the right to lodge a complaint and have their complaint reviewed within the limitations and expectations set out in the framework. In relation to review and appeals, the framework follows the University's *Review and Appeals Regulations 2012*.

In most cases attempts to resolve a student matter should first be made at the local level, directly with the relevant organisational unit. A local resolution may not be attempted in some cases including where a matter is extremely serious or sensitive and it is not appropriate to be dealt with at the local level.

The University will make available to its students documented processes detailing how it will deal with complaints about discrimination, bullying, violence or sexual harassment.

The complaints management framework sets reasonable requirements (such as identification, information provision, genuineness, reasonableness and substance) which complainants must fulfil, otherwise the University will not be obligated to deal with the complaint.

Complaints by staff (where those do not fall within University staff grievance process) and people external to the University are also considered under the complaints management framework but are not subject to review or appeal under the *Review and Appeals Regulations 2012*.

Table of roles and responsibilities (VC delegation)

Role/Decision/Action	Responsibility*	Conditions and limitations
Establishing complaints management framework and guidelines.	Director, Governance and Assurance	The guidelines must be published. Must comply and be consistent with University legislation and policy.

* (Staff holding, acting in or performing the responsible position or office)

6.7.2. Student misconduct

Alleged student misconduct will be acted on and investigated in accordance with the principles of consistency and procedural fairness.

The University maintains a no tolerance approach to misconduct of a serious nature (such as fraud, theft, violence and intimidation), and sanctions imposed will reflect this stance. Sanctions should be severe enough to account for the misconduct, the effect on others, to re-enforce the University's expectations of its students, and to act as a deterrent for the student and other students in similar situations.

The University recognises that some cases of misconduct may be due to the misadventure, misguided intentions, experience or circumstances of students. In these cases a level of leniency may be afforded with the intention of making a positive impact on the student's future at Swinburne.

The University will consider the message the sanction sends to the Swinburne community, and the preservation of the University's reputation as a quality and safe learning environment.

A student under investigation for alleged misconduct will normally be permitted to continue attending classes with the exception of students who have already had sanctions that restrict such attendance imposed under the *Student Academic Misconduct Regulations 2012* or the *Student General Misconduct Regulations 2012*.

Table of roles and responsibilities (VC delegation)

Role/Decision/Action	Responsibility*	Conditions and limitations
Establishing misconduct guidelines.	Director, Governance & Assurance	The guidelines must be published. Must comply and be consistent with University legislation and policy Must be consistent with complaints management framework.

* (Staff holding, acting in or performing the responsible position or office)

6.7.3. Student enrolment pending review or appeal

If a student has been suspended or excluded or had a sanction imposed, then provided the student fulfils all conditions for a valid enrolment, including payment of all fees and compliance with all applicable standards of conduct, statutes, regulations, policies, procedures and directions of the University, pursuant to section 23 of the Academic and Student Affairs Statute 2012 the University will normally stay a student's exclusion, suspension or other sanction and maintain the student's enrolment during the review or appeal period (including external appeals, if known). However, the University reserves the right to decide not to stay an exclusion, suspension or other sanction where this is considered appropriate.

If a student's enrolment is maintained during a review or appeal period for a student unsatisfactory progress decision and a decision on the review or appeal is made after two thirds of a teaching period has passed then, provided that the student continues to fulfil all conditions for a valid enrolment, including payment of all fees and compliance with all applicable standards of conduct, statutes, regulations, policies, procedures and directions of the University, the student's enrolment will normally be maintained for the remainder of that teaching period and the student will be allowed to undertake assessment and receive results for that teaching period. However, the University reserves the right to terminate an enrolment where this is considered appropriate.